

Manoj Kumar v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 24 February 2023 · Writ-C No. 6373 of 2023 · **Disposed; clause 6.5 quantum left to pending Lok Adalat**

HEADNOTE

Writ against a clause 6.5 speaking order disposed of. The Court declined to reappreciate whether Rs. 4,71,073.83 was due on permanent disconnection, the issue being one of evidence, and left the consumer free to challenge that order in the already pending Permanent Lok Adalat case or in other proceedings.

FACTUAL SUMMARY

Manoj Kumar challenged a recovery citation of 2 April 2022. On 19 September 2022, in Writ-C No. 25432 of 2022, this Court directed respondent No. 5 to decide his objection by a speaking order under clause 6.5 of the Electricity Supply Code, 2005. The order of 19 October 2022 found Rs. 4,71,073.83 due on permanent disconnection and recorded that Permanent Lok Adalat Case No. 07 of 2022 on the same grievance was already pending, a fact not disclosed in the earlier writ. He then sought to quash that order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Writ against a clause 6.5 quantification while a Permanent Lok Adalat case is pending

HOLDING

The Court will not examine whether Rs. 4,71,073.83, found due on the date of permanent disconnection by the speaking order passed under clause 6.5, is correct. That question requires appreciation of evidence, and Permanent Lok Adalat Case No. 07 of 2022 on the same cause is already pending. The consumer may challenge the speaking order in those proceedings or take such other proceedings as may be advised. ¶ 1-2

PRINCIPLE TAGS

pla-bill-dispute-jurisdiction-not-ousted-by-clause-6.5

The clause 6.5 speaking order did not close the pending Permanent Lok Adalat complaint. The consumer was left free to challenge that order, and the sum found due on permanent disconnection, in P.L.A. Case No. 07 of 2022. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RS. 4,71,073.83 WAS CORRECTLY DUE ON THE DATE OF PERMANENT DISCONNECTION

Left open as a question of evidence for the pending Permanent Lok Adalat or such other proceedings as the consumer may be advised. ¶ 1-2